

26NNCV05878 26NNCV05878

County: los-angeles

Division: Civil Law and Motion

Department: D

Hearing date: 2026-09-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=GLN%2CD%2C09%2F11%2F2026

Source SHA-256: a8786aeb22af3ec7c5c42a2ad5fdb76dad7f010ba53bce3c073458fa9c4ef8cb

Case Number: 26NNCV05878 Hearing Date: September 11, 2026 Dept: D

TENTATIVE RULING

Calendar: Add-on

Date: September 11, 2026

Case No: 26NNCV05878 Trial Date: Not yet set

Case Name: Leung v. Da, et al.

MOTION TO QUASH SERVICE OF SUMMONS

[CCP §§ 415.10, 415.20]

Moving Party: Defendant, Jin Dai

Responding Party: Plaintiff, Robert Leung

RELIEF REQUESTED:

Quash service of summons and complaint as to Defendant Jin Dai.

CAUSES OF ACTION: from Form Unlawful Detainer Complaint

1) Unlawful Detainer

SUMMARY OF FACTS:

Plaintiff Robert Leung ("Plaintiff") is the owner of real property located at 8632 E. Valley Blvd, in the City of Rosemead, California, 91770. Defendant Jin Dai, dba Yu-Cake, ("Defendant") is the tenant in the premises pursuant to a commercial lease agreement. Plaintiff alleges that Defendant owes past due rent in the amount of \$110,000.00.

ANALYSIS:

"Service of process, under longstanding tradition in our system of justice, is fundamental to any procedural imposition on a named defendant." (AO Alfa-Bank v. Yakovlev (2018) 21 Cal.App.5th 189, 202 [internal citations omitted].) "To establish personal jurisdiction, compliance with statutory procedures for service of process is essential." (Kremerman v. White (2021) 71 Cal.App.5th 358, 371.) Defendant's knowledge of the action does not dispense with statutory requirements for service of summons. (Kappel v. Bartlett (1988) 200 Cal.App.3d 1457, 1466.)

"A defendant, on or before the last day of his or her time to plead or within any further time that the court may for good cause allow" may move "to quash service of summons on the ground of lack of jurisdiction of the court over him or her" that results from lack of proper service. (CCP, § 418.10, subd. (a)(1).) A defendant has 30 days after the service of the summons to file a responsive pleading. (CCP, § 412.20, subd. (a)(3).)

Once a challenge to a court's personal jurisdiction is filed, "the burden of proof is placed upon the plaintiff to establish the facts of jurisdiction by a preponderance of the evidence. This may be done through presentation of declarations, with opposing declarations received in response." (CenterPoint Energy, Inc. v. Superior Court (2007) 157 Cal.App.4th 1101, 1118 (citing Aquila, Inc. v. Superior Court (2007) 148 Cal.App.4th 556, 568).) "When a defendant challenges the court's personal jurisdiction on the ground of improper service of process 'the burden is on the plaintiff to prove the existence of jurisdiction by proving, inter alia, the facts requisite to an effective service.'" (Summers v. McClanahan (2006) 140 Cal.App.4th 403, 413.)

Defendant argues that the summons and complaint were not properly served through personal service or substituted service.

"A summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served. Service of a summons in this manner is deemed complete at the time of such delivery." (CCP, § 415.10, sub. (a)(1).) "If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served [...], a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing." (CCP, § 415.20, subd. (b).)

Defendant argues that the purported service of the summons and Complaint is not proper because Plaintiff did not first attempt personal service before serving Defendant via substitute service and also because the proof of service is materially deficient.

The proof of service checks the box under item 5a for personal service, yet the date and time information is not filled out. (8/10/2026 POS.) The date and time is filled out under item 5b, for substituted service. (8/10/2026 POS.) Defendant asserts that Plaintiff's wife purportedly delivered a copy of the summons and Complaint to an employee at the subject premises, but no effort had been made to first serve Defendant personally. (Dai Decl., ¶¶ 14-22.) In addition, the proof of service does not indicate that the documents were mailed to Defendant after being left at the premises nor does it appear that the employee was authorized to accept service on Defendant's behalf. Finally, the proof of service is signed and dated on "July 31, 2024," two years before this action was filed.

In the opposition, Plaintiff reasserts the allegations made in the Complaint and asserts that Helen Leung can effect service because she is not a party to the action. However, the opposition does not address the substantive issues such as the failure to attempt personal service or the failure to comply with the statutory requirements for substituted service. Thus, the Court finds that Plaintiff failed to properly serve the summons and Complaint on Defendant.

The motion is GRANTED.

RULING:

Defendant Jin Dai's Motion to Quash Service of the Summons and Complaint is GRANTED. The July 31 service of summons is QUASHED.

DEPARTMENT D IS CONTINUING TO CONDUCT AND ENCOURAGE VIDEO APPEARANCES